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File No.: EXP202310075

## RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On September 15, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against VERNE INFORMATION TECHNOLOGY, S.L. (hereinafter the respondent). The initiation agreement was notified, and after analyzing the allegations presented, on October 24, 2023, the proposed resolution was issued, which is transcribed below:

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File No.: EXP202310075

## PROPOSED RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

### FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on June 27, 2023. The complaint is directed against VERNE INFORMATION TECHNOLOGY, S.L. with NIF B42626937 (hereinafter, the respondent). The grounds for the complaint are as follows:

Receipt of commercial electronic communications without having expressly authorized it and without any prior contractual relationship.

Along with the complaint, a copy of an email sent by the respondent to the complainant on June 27, 2023, is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The forwarding, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on July 18, 2023, as evidenced by the acknowledgment of receipt in the file.

On July 31, 2023, a response was received by this Agency indicating that:

“Verne Information Technology, S.L. sends commercial communications based on legitimate interest, and in all communications, it provides recipients with the option to unsubscribe from receiving such messages.

That the complainant has filed the complaint with this Agency without having previously exercised the right to erasure nor having clicked the Unsubscribe link in any of the communications received.

Furthermore, in the emails provided by the complainant, it is evident that in the email sent by Verne Information Technology, S.L., it states that the rights can be exercised, as well as obtaining more information by contacting the Data Protection Officer at \*\*\*EMAIL.1, but no communication has been received in this regard.

“That the complaint initiated by the complainant concerns the sending of commercial communications, alleging that the complainant has no relationship with the respondent for the sending of this information nor has consented to such purpose.

At Verne Information Technology, S.L., we occasionally process contact information within companies and in relation to their job position, based on Article 6.1.f) of Regulation (EU) 2016/679, which establishes that data may be processed for “the satisfaction of legitimate interests pursued by the data

controller or by a third party, provided that such interests do not prevail over the interests or fundamental rights and freedoms of the data subject which require the protection of personal data.” Likewise, to assess the prevalence of legitimate interest, a weighting of the same was carried out for commercial communications.

Furthermore, the communications made comply with the requirements established in Article 19.1 LOPDGDD.

The communications made are to maintain relationships with the legal entity in which the complainant provides services; evidence of this is that the information sent is to inform about the benefits of the SAGE ERP for the company.”

THIRD: On August 16, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

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FOURTH: On September 15, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 21.1 of the LSSI, classified under Article 38.4.d) of the LSSI.

FIFTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the complained party submitted a written statement of allegations.

SIXTH: Attached as an annex is a list of documents in the proceedings.

From the actions taken in the present proceedings and the documentation in the file, the following has been established:

#### PROVEN FACTS

FIRST: It is evidenced in the file that the complained party has sent commercial electronic communications to the claimant, without there currently being a contractual relationship, which, if it existed, was prior to the claimant being the IT and systems manager at Velilla Confección Industrial, a client of Verne.

SECOND: It is evidenced in the file that the email sent by the complained party to the claimant on June 27, 2023, was sent to a company account (\*\*EMAIL.2) and not to the personal account of the claimant.

#### LEGAL GROUNDS

I

##### Competence

According to the provisions of Article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

## Allegations to the initiation agreement

The complained party submitted a written statement of allegations in which it stated the following:

### ALLEGATIONS

"The email was sent by one of our consultants for professional contact with the complainant, as in the past A.A.A. had a professional relationship with Verne Information Technology, S.L. as the IT and systems manager at Velilla Confección Industrial, a client of Verne.

Due to this contractual relationship between Velilla Confección Industrial and Verne Information Technology, the complainant has continued to maintain contact with part of Verne's staff through various communication channels, for example, LinkedIn, as can be verified on the complainant's social network, which has several Verne employees among their contacts.

As a result of this relationship, one of our sales representatives considered themselves covered under Article 21.2 LSSICE.

Moreover, at all times, the complainant was given the option to oppose the processing of their data for promotional purposes through a simple and free procedure.

We believe that the reported fact was caused by the interpretation of an employee, who considered that they could continue to maintain a professional relationship with the complainant, despite the complainant changing companies.

At Verne Technology Group, S.L., we are very aware of compliance with data protection regulations, as well as LSSICE.

We have a data protection policy that is mandatory reading for all staff, periodic training is conducted, we inform through internal channels about compliance with regulations and awareness in this regard, etc.

Additionally, new measures are being adopted to raise awareness among staff and collaborators about compliance with regulations, to..."

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that everyone receives clear information that may affect their day-to-day lives, for example, the creation of explanatory infographics or expanding training both on compliance with regulations related to data protection and LSSICE."

After examining the allegations of the responding party, this Agency considers that when an email address, even if it is a company email account, can be linked to an identified or identifiable natural person, it is undoubtedly a personal data. This means that it is necessary to obtain the unequivocal consent of the affected person or that this consent may be considered exempt under some of the exceptions of the aforementioned law.

The fact that there may have been a professional relationship in the past due to the position held by the now-complaining party in their previous job, or that this person continues to maintain contact with part of the staff of the responding company through various communication channels as pointed out by the responding party, is not a reason to understand that there is consent on their part to receive commercial communications from the responding party.

For all the above reasons, the allegations presented are DISMISSED.

### III

Currently, "spam" refers to all types of unsolicited communication conducted electronically. Thus, "spam" is understood to mean any unsolicited message that typically aims to offer, market, or try to arouse interest regarding a product, service, or company. Although it can be done through various means, the most commonly used is email.

This conduct is particularly serious when carried out en masse. The sending of commercial messages without prior consent is prohibited by Spanish legislation.

The low cost of sending emails via the Internet or through mobile telephony (SMS and MMS), its possible anonymity, the speed with which it reaches recipients, and the possibilities it offers regarding the volume of transmissions have allowed this practice to be carried out abusively and indiscriminately.

Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter, LSSI), in its article 21.1, expressly prohibits “the sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients.” That is to say, commercial communications aimed at the direct or indirect promotion of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activity are disallowed without the express consent of the recipient, although this prohibition finds its exception in paragraph 2 of the aforementioned article 21, which authorizes the sending of commercial communications when “there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient.”

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and will use them to send commercial communications regarding products or services of their own company that are similar to those initially contracted with the client.” Thus, the sending of unsolicited commercial communications, outside the exceptional case of Article 21.2 of the LSSI, may constitute a minor or serious infringement of the LSSI.

In accordance with these regulations, consent, in addition to being prior, specific, and unequivocal, must be informed. This information must be complete and accurate regarding the sector of activity from which one may receive advertising, with a warning about the right to refuse or withdraw consent. This information, thus configured, must be taken as a necessary prerequisite to grant validity to the expression of will of the affected party.

IV

As already noted, the LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is qualified as an information society service and is defined in its Annex as follows:

“f) ‘Commercial communication’: any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.

For the purposes of this Law, the data that allows direct access to the activity of a person, company, or organization, such as the domain name or email address, will not be considered commercial communication, nor will communications related to the goods, services, or image offered when they are produced by a third party and without economic consideration.”

The concept of commercial communication, according to the definition included in Annex f), first paragraph of the LSSI, encompasses all forms of communications intended to promote, directly or indirectly, goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines “Information Society Service” as “any service normally provided for remuneration, at a distance, by electronic means, and at the individual request of the recipient.”

The concept of information society service also includes services not remunerated by their recipients, insofar as they constitute an economic activity for the service provider.

The aforementioned section adds that the sending of commercial communications is an information society service, as long as it represents an economic activity.

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According to section d) of the aforementioned Annex, the recipient is the “natural or legal person who uses, whether or not for professional reasons, an information society service.”

From the above, it follows that when the commercial communication does not meet the requirements required by the concept of Information Society Services, it loses its character as a commercial communication. In this sense, the second paragraph of Annex f) of the LSSI indicates two cases that will not be considered commercial communication for the purposes of this Law. On the one hand, the data that allows direct access to the activity of a person, company, or organization, such as the domain name or email address, and, on the other hand, communications related to the goods, services, or image offered when they are produced by a third party and without economic consideration.

V

Title VII of the LSSI under the heading “Infringements and Sanctions” contains the sanctioning regime applicable in the event that any of the infringements contained in the infringement table included therein occur.

Specifically, Article 37 specifies that “providers of information society services are subject to the sanctioning regime established in this Title when this Law is applicable to them.”

The definition of service provider is contained in section c) of the Annex of the aforementioned regulation, which considers as such the “natural or legal person who provides an information society service.”

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VI

The known facts constitute an infringement, attributable to the responding party, for violation of Article 21.1 of the LSSI, which states the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.”

In light of the above and considering that the complainant states that they have no prior contractual relationship or consent regarding this matter with the responding party to receive communications, it is understood that a violation of the cited article has occurred due to the receipt of commercial communications (spam) in which legitimate interest does not apply, applying the LSSI and not 6.1.f) of Regulation (EU) 2016/679.

VII

The infringement is classified as minor under Article 38.4.d) of the LSSI, which considers as such: “The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and does not constitute a serious infringement.”

This infringement is sanctioned with a fine of €2,000 (TWO THOUSAND EUROS), in accordance with Article 39.1.c) of the LSSI.

“1. For the commission of the infringements set forth in the previous article, the following sanctions shall be imposed:

(...)

c) For the commission of minor infringements, a fine of up to 30,000 euros.”

In view of the above, the following

#### PROPOSAL FOR RESOLUTION

is issued that the Director of the Spanish Agency for Data Protection sanctions VERNE INFORMATION TECHNOLOGY, S.L., with NIF B42626937, for an infringement of Article 21.1 of the LSSI, classified under Article 38.4.d) of the LSSI, with a fine of €2,000 (TWO THOUSAND EUROS). Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that they may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will entail a reduction of 20% of the amount thereof. With the application of this reduction, the sanction would be set at €1,600 (ONE THOUSAND SIX HUNDRED EUROS) and its payment will imply the termination of the procedure.

The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that they choose to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, it must be made effective by depositing it into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Furthermore, they must send the proof of payment to the General Subdirectorate of Inspection to proceed to close the file.

By virtue of this, the above is notified to you, and the procedure is made known so that within TEN DAYS you may allege whatever you consider in your defense and present the documents and information you deem pertinent, in accordance with Article 89.2 of the LPACAP.

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Manuela Aladid Martínez

INSTRUCTOR

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ANNEX

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15/09/2023 Agreement to initiate to VERNE INFORMATION TECHNOLOGY, S.L.

15/09/2023 Info. Complainant to A.A.A.

22/09/2023 Allegations from SYMLOGIC SL

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SECOND: On November 10, 2023, the responding party proceeded to pay the fine in the amount of 1,600 euros making use of the reduction provided for in the previously transcribed proposal for resolution.

THIRD: The payment made entails the renunciation of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the proposal for resolution.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Termination of the procedure

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Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202310075, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to

VERNE INFORMATION TECHNOLOGY, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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